Preamble to the Constitution

Table of Contents

- Text of the preamble
- Objective of the Constitution
- Related Cases
- Significance

Introduction

✓ **Introduction or Preface:** Acts as an introduction to the Constitution, stating its objectives and philosophy.

✓ **Summary of the Constitution:** It encapsulates the essence of the Constitution's guiding principles.

✓ **N.A. Palkhivala:** Called it the "Identity card of the Constitution."

✓ **Based on the 'Objective Resolution':** Drafted by Jawaharlal Nehru in 1946, which laid the foundation for India's constitutional principles.

✓ **42nd Constitutional Amendment Act (1976):** Added three words—**Socialist, Secular, and Integrity**—to the Preamble during the Emergency period.

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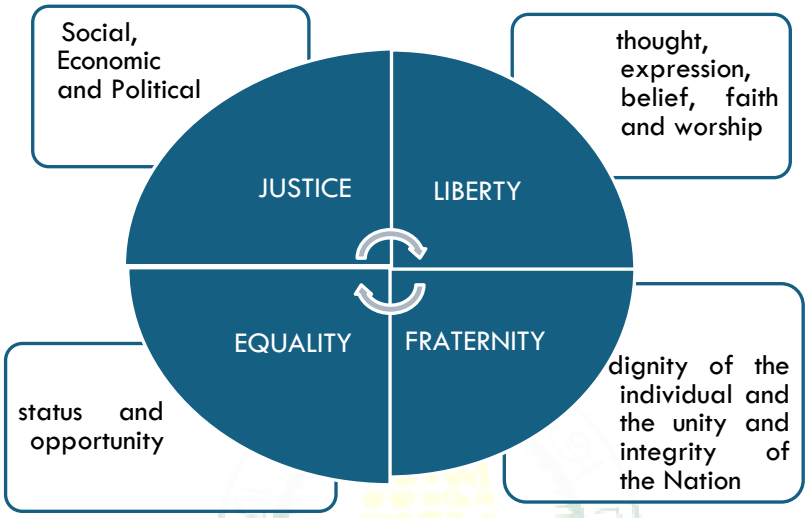
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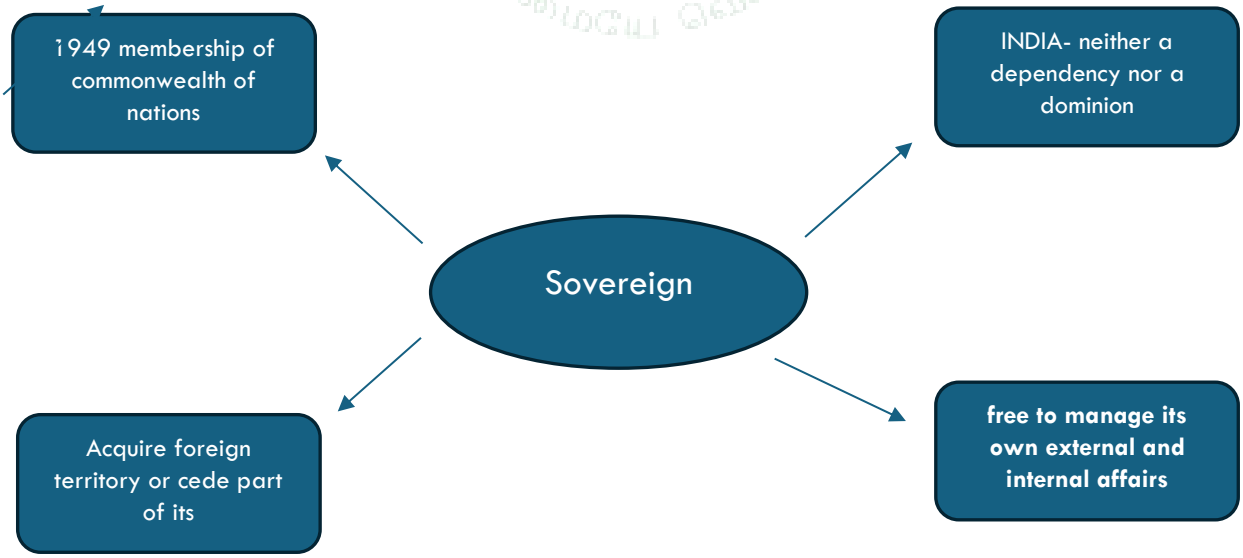
Department of Employment and Training.

Text of the Preamble

We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:



Keywords in the preamble



Socialism a

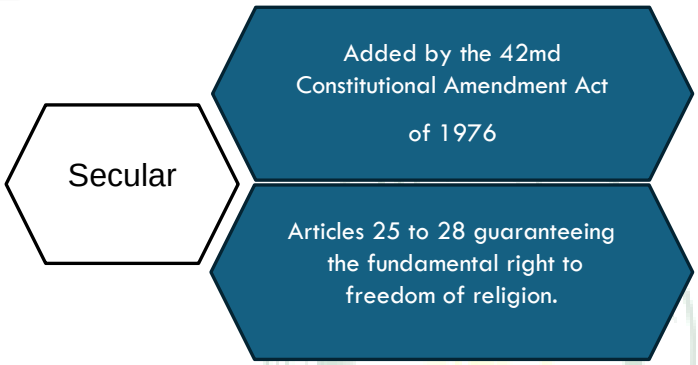
"Socialist"Preamble42nd Constitutional Amendment Act (1976)

- Before Present in Directive Principles of State Policy

India follows **Democratic Socialism**, which allows a **mixed economy** (both public and private sectors coexist).

- Indian Socialism-blend of Marxism and Gandhism

Secular



Republic

- ❖ Democratic polity two categories:

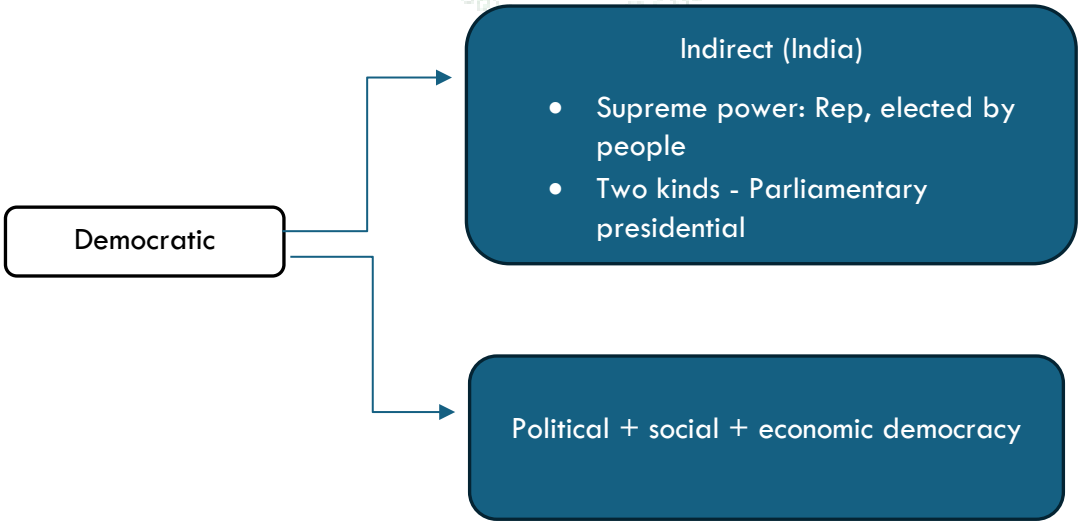
Monarchy

- ❖ Head-king/Queen (Britain)

Republic

- ❖ Elected head directly /Indirectly (USA, India)
- ❖ India has elected head called President - elected
- ❖ Indirectly (Period 5 years)
- ❖ Two things:
- ❖ Political sovereignty with people.
- ❖ Absence of any privileged class.

Democratic



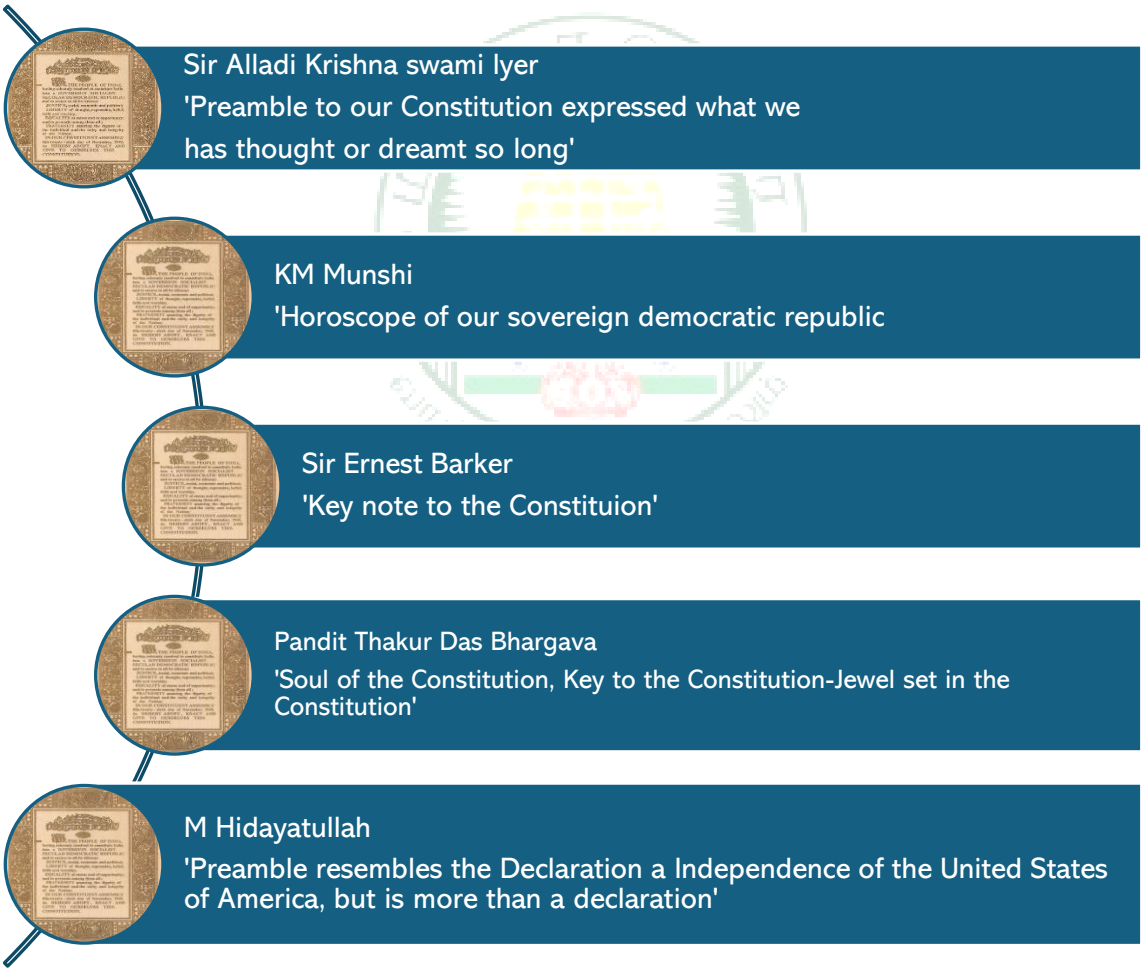
Related Cases

Berubari Union Case (1960):
Preamble not a part of the Constitution

Kesavananda Bharati case (1973)
Preamble is a part of the Constitution

LIC of India case (1995)
Preamble is an integral part of the Constitution

Significance





Justice	Liberty	Equality	Fraternity
Derived from the Russian Revolution **Social Justice:** Equal treatment without social distinction. **Economic Justice:** Eliminating inequalities in wealth, income, and property. - **Political Justice:** Equal political rights, access to political offices, and participation in government.	Fundamental Rights provide **qualified liberty.** Ensures personal development and dignity.	Ensures equal status and opportunities for all citizens. **Civic Equality (Art 14-18):** No special privileges. **Political Equality (Art 325 & 326):** No discrimination in electoral rolls & adult suffrage. **Economic Equality (Art 39 - DPSP):** Adequate opportunities for all.	Promotes a sense of brotherhood, dignity, unity, and integrity of the nation. **Manifestations:** Single citizenship, fundamental duty to promote harmony.

The **ideals behind the Preamble** to India's Constitution were derived from **Jawaharlal Nehru's Objectives Resolution,** which was adopted by the **Constituent Assembly on January 22, 1947.**